

A responsive pleading to plaintiffs Ingrid Marroquin, Clint Garcia, and Araceli Garcia (collectively, "Plaintiffs") Complaint was due January 2, 2026. See Memorandum of Points and Authorities filed March 6, 2026 as part of Motion re Default ("MPA"), p. 3. Defendant did not file a response by that date. *Id.* A default was then entered against Defendant and in favor of Plaintiffs on March 3, 2026. MPA, p. 3; see also Request to Enter Default filed March 3, 2026. Defendant subsequently filed the Motion re Default on March 6, 2026 asserting that a calendaring error by counsel prevented filing of the responsive pleading. See MPA, p. 3. The Proof of Service dated March 6, 2026 attached to the Motion re Default reflects service on Plaintiffs' counsel.

The Motion re Default is unopposed.

Analysis

Defendant is seeking mandatory relief from a default that was entered due to attorney error. A default must be vacated when the defendant's motion is (1) filed within six months after entry of default, (2) supported by an attorney's affidavit attesting to the attorney's mistake, (3) accompanied by the proposed responsive pleading, and (4) accompanied by a supporting memorandum. See Code Civ. Proc. § 473(b); Cal. Rules of Court, rule 3.1113(a). Where the statutory requirements are met, a trial court does not have discretion to refuse relief unless the court finds that the default was not caused by the attorney's mistake. See *Talbott v. Ghadimi* (2025) 109 Cal.App.5th 967, 977. Section 473 is to be construed liberally, and any doubts in its application should be resolved in favor of the party seeking relief. See *Maynard v. Brandon* (2005) 36 Cal.4th 364, 371-372.

Here, Defendant filed the Motion re Default three days after the entry of default. This is well within the six-month deadline. Additionally, the Motion re Default is supported by a declaration by Defendant's counsel, supporting memorandum, and proposed answer. See MPA; Declaration of Melanie D. Popper filed March 6, 2026 as part of Motion re Default, and **Exhibit A** thereto (including Proposed Answer to Complaint). The evidence demonstrates that the mistake was the result of attorney error, and mandatory relief applies pursuant to Code of Civil Procedure section 473(b). As such, the Motion re Default is GRANTED.

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Set Aside Default is GRANTED.
2. A responsive pleading shall be filed and served within ten (10) calendar days from notice of entry of this order.
3. Moving party to prepare the order after hearing.

7. 9:00 AM CASE NUMBER: C25-02766
CASE NAME: HARTLEY HANSEN VS. KNIGHTSEN ELEMENTARY SCHOOL DISTRICT
***HEARING ON MINOR'S COMPROMISE AS TO HARTLEY HANSEN**
FILED BY: HANSEN, HARTLEY
TENTATIVE RULING:

Plaintiff Hartley Hansen, by and through the duly appointed guardian ad litem herein, Erik Hansen, filed a Petition for Approval of Compromise of Claim on or about May 4, 2026 (the "Minor's Compromise")

seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on September 21, 2026. Thereafter, the hearing date was advanced to July 6, 2026. See Order entered June 16, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed form of order lodged with the moving papers.

8. 9:00 AM CASE NUMBER: C25-03817
CASE NAME: PHADENDRA TIMILSINA VS. EVERBRIGHT, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BRIGHT PLANET SOLAR, INC.,
TENTATIVE RULING:

Defendant Bright Planet Solar, Inc.'s motion to compel arbitration is **GRANTED**.

Plaintiff has owned his home since 2019. In 2024, an Everbright salesperson told Plaintiff that due to new technology, Plaintiff did not need as many solar panels and thus solar panels would be a feasible option for Plaintiff. Plaintiff alleges some confusing and high-pressure sales tactics. Ultimately, Plaintiff agreed to have solar panels installed although he alleges that he was misled as to where the panels would be installed. (Comp. ex. A.) Bright Panel was the company responsible for installation. When it came time to install the solar panels, Plaintiff was told that the panels would be installed on the patio and not just the roof. Ultimately, the installation of solar panels on the patio caused the patio roof to leak, creating water damage to the home. The installation also resulted in structural problems with the patio roof.

Plaintiff filed this case against Everbright and Bright Panel for (1) fraud (Everbright only), (2) fraud by concealment (Everbright only), (3) negligent misrepresentation (Everbright only), (4) violation of Consumer Legal Remedies Act, (5) Unfair competition, (6) negligence, (7) violation of Civil Code section 1689.5 (Everbright only), (8) construction defect, (9) breach of warranties and (10) violation of home improvement contract requirements.

Bright Planet filed this motion to compel arbitration seeking to have all claims against it sent to arbitration.

Existence of an Agreement to Arbitrate

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1, *et seq.* ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; Code Civ. Proc. 1281, 1281.2, 1290.2.) Arbitration agreements may be invalidated on